Another major problem facing communities of people is how to deal with human desires for freedom. In our second Theme we ask, is freedom a fundamental human right? Should there be limitations on our freedom and if so, on what grounds? And what is the best form of political organisation to secure our freedom?

Turning then to questions of aesthetic value, Theme 3 explores the nature of art, beauty and the aesthetic experience. What is art, what is its purpose, and how should it be valued?

Our final Theme considers the issues that arise when we look for meaning in art. Should we look to the artist, the artwork itself or to our own personal response when forming an interpretation of art? Should we try to interpret art at all? And lastly, what is the relationship between art and morality? We consider whether art can make us better people, the morality of forgeries and the problem of censorship.

As you complete your studies of Unit 2 Philosophy, your skills of reasoning and argument will be well honed. We hope you enjoy applying them to the problems in value theory posed in this Chapter.

THEME 1

On Rights and Justice

What is a right? How do rights come about? Can all things enjoy rights or only things that have particular capacities? Why? What is the relationship between rights, justice and the law, and can punishment be reconciled with justice and rights?

In this Theme you will explore the nature of rights and consider whether, and on what grounds, different kinds of entities can be granted rights. Inevitably questions regarding rights will involve questions regarding justice, and so our discussion about rights will move into a discussion about justice, what it is and what relationship it shares with rights. From there, the Theme will consider the nature of law and its role in administering justice, a discussion which would not be complete without some consideration of punishment and the role it plays in the successful governing of society.

Rights

Introductory Activities

DO

Consider the following examples of rights:

right to life	right to privacy	right to a fair trial
freedom of association	right to vote	freedom of religion
right to operate a forklift	freedom of expression	right to practise law
right to healthcare	right to seek asylum	right to an education
right to drive a car	right to sick pay	right to an abortion
right to feel proud of what one has done	right to dress as one pleases	right to pronounce a couple man and wife

In pairs, group these examples according to similarities. As you group the examples, try to come up with a sub-heading for each group that explains the kinds of rights it includes. As a class, share your groupings and discuss the following questions:

1. Is everyone entitled to all of these rights or are there certain criteria an entity must fulfil to be granted these rights?
2. Which of these rights would you consider universal? On what grounds?
3. Can any of these rights be revoked or are they **inalienable** (unable to be taken or given away)? On what grounds?
4. What responsibilities are implied by these rights?
5. Considering both the activity and discussion questions 1-4, how would you define a right?

What is a Right?

In the modern world, **rights** are the measure by which we judge the permissibility of actions and the justice of institutions. They shape our understanding of morality, form the bedrock of our laws and call to account the governments of the world. But what exactly are they?

At its most basic, a right is simply a freedom or entitlement. Rights define what people are allowed to do, or what they are owed, and generally they necessitate a duty on the part of someone else. To have a right means to have a claim according to a legal system, social convention or ethical theory.

Yet, although the basic concept of rights is relatively straightforward, there are some differences between the kinds of rights that we enjoy. Outlined below are some of the differences that philosophers and political theorists have identified.

NATURAL RIGHTS

Unlike some rights, **natural rights** (also known as moral rights) are not relative to particular societies and do not derive their authority from law. They exist necessarily and are universal: all people, in all parts of the world, are entitled to these rights by fact of their humanity.

This immediately raises the question of where these rights come from. Although different philosophers hold different views, the seventeenth century British philosopher John Locke (Famous Philosopher File *p.*104) maintains they are granted to us by God and are a part of our existence in the **state of nature** (a pre-political stage of human existence), where we are all equal and independent. In this state of nature we enthusiastically defend our lives, our freedom and what we own. Thus Locke famously formulated the existence of three natural rights – life, liberty and property – which we are entitled to so long as our pursuit of liberty does not conflict with the right to life, and our ownership and pursuit of property do not conflict with either the right to life or the right to freedom. Locke believed that the role of government was to create laws to protect these three natural rights. If it failed to do so, the people could rightfully overthrow it.

Although Locke's views regarding rights have proven extremely influential – the rights of life, liberty and property form the bedrock of Western democracies everywhere – not everyone agrees that rights are natural entitlements.

The eighteenth century philosopher Jeremy Bentham (Famous Philosopher File p.404), in his posthumously published *Anarchical Fallacies* (1816), described the notion of natural rights as 'nonsense upon stilts.' According to Bentham, rights are created by laws, which are in turn created by governments at the will of the sovereign. Because rights are *dependent* on governments, it makes no sense to talk about 'natural' rights, for in a state of nature rights could not exist. Additionally, the duties to which these rights generally correlate are also determined by governments (via the law), which, according to Bentham, further demonstrates his claim that such rights could not precede governments.

Bentham also rejected natural rights because he believed their existence was posited on a fallacious understanding of how civil societies come about. This understanding, known as the **social contract**, holds that civil societies are created when individuals living in a state of nature gift their autonomy to a sovereign in return for certain rights and protections. Bentham claims that this view is not only unhistorical, the notion of a 'contract' between autonomous individuals in a state of nature and a sovereign is completely ridiculous: how could such a contract predate a government whose job it is to enforce contracts and make them legally binding?

Finally, Bentham accused natural rights of being 'anarchical.' He claimed that if there are natural rights, they are anterior to, and so cannot be limited by, law. Yet for rights to exist in any meaningful way requires some limitations on the individual's freedom (for example, my right to life is only meaningful if you have no right to kill me). Thus the notion of 'natural' rights doesn't seem to make sense. Furthermore, the limitations necessary to make rights meaningful imply that rights must be capable of being enforced, which in turn requires law – which is the province of governments.

DO

Create a list of examples of natural rights (you may like to use the internet for ideas).

Discuss the following questions:

1. How widely recognised are these rights?
2. Is the fact of their recognition grounds enough to grant them authority?
3. Should authority be granted to particular rights simply on the basis that they are widely recognised?

LEGAL RIGHTS

Although Jeremy Bentham was a staunch critic of natural rights, he didn't dismiss rights completely. Bentham simply believed that the only 'real' rights were **legal rights**.

Legal rights are rights based on a given society's customs and beliefs and are codified in law. The right to vote is a legal right in Australia and the right to bear arms is a legal right in the United States. Because legal rights are products of particular societies, they are culturally and politically relative.

THINK

Are there legal rights that are also natural rights? If so, does this cast doubt on Bentham's claims regarding natural rights?

LIBERTY RIGHTS AND CLAIM RIGHTS

Another distinction drawn by philosophers when talking about rights is between liberty rights and claim rights. Put simply, **liberty rights** are freedoms. They permit us, among other things, to say what we please (right to freedom of opinion and expression), think what we please (right to freedom of thought) and worship whom we please (right to freedom of religion).

Claim rights are entitlements. They involve certain duties and responsibilities being fulfilled by other parties for the right holder. Examples of claim rights include the right to a basic education and the right to a fair trial.

Although distinct, both liberty rights and claim rights moderate one another and are dependent on one another for their flourishing. Thus a person who enjoys a certain liberty can only do so if no one else holds a claim right against the assertion of that liberty. Likewise, a person's claim right will necessarily serve to limit someone else's liberty by obliging them to fulfill particular duties or responsibilities. There are also examples where liberty rights and claim rights overlap, such as when laws are created which oblige other parties (such as the state) to respect and protect particular liberties.

THINK

What are some examples of liberty rights and claim rights? Which of these rights are also natural rights? Which of these rights are also legal rights? Are any of these rights both natural *and* legal rights?

POSITIVE AND NEGATIVE RIGHTS

A third distinction drawn by philosophers is between positive rights and negative rights.

Positive rights are entitlements to specific services, or permissions to engage in certain actions. They imply an obligation on behalf of others towards the right holder. For example, the right to receive a basic education implies an obligation on behalf of the government to supply it. Likewise, the right to receive unemployment benefits in certain circumstances implies an obligation on behalf of the government to create the economic infrastructure necessary to ensure this right is met.

Negative rights are rights that forbid others from acting against the right holder, usually by means of coercion or abuse. Examples of negative rights include freedom of speech, freedom of worship and the right to a fair trial.

Both negative rights and positive rights can also be legal rights or natural rights, liberty rights or claim rights. Yet, while many thinkers – particularly **libertarians** – agree with the distinction between these rights, others argue that the distinction is false. They claim that, as negative rights can only be upheld through positive action (for example, my right to freedom of speech is dependent on the whole legal apparatus which upholds it), negative rights are really just positive rights in a different guise. However, supporters of the distinction point out that, as negative rights do not necessarily imply that someone else has a *duty* to enforce them, the distinction is warranted.

THINK

What are some other examples of negative rights and positive rights?

CIVIL AND POLITICAL RIGHTS

Civil and political rights are generally negative rights aimed at protecting against interference from governments or private organisations, and ensuring the ability of individuals to participate in the civil and political life of their respective society without fear of discrimination or repression.

Civil rights include protection from discrimination on the grounds of race, gender and religion and rights such as freedom of thought and conscience.

Political rights include rights relating to the law, such as the right to a fair trial, due process and the right to seek redress, and rights relating to participation within civil society, such as the right to vote and freedom of association.

Both political and civil rights constitute the first portion of the Declaration of Human Rights and are recognised as some of the first human rights.

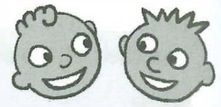
DO

Go back to the rights listed in the Introductory Activity for this Theme (p.435). Together with a partner, identify the kind of right each right represents (there is more than one possible answer).

WRITE

Write a definition for each kind of right described in this section in your own words in your workbook.

The Function of Rights



DISCUSS

What is the *function* of a right?

The above question appears deceptively simple. But as your discussion may have revealed, it is actually quite complex. Is the function of a right to give the right holder control over others' duties, or is its function to further the right holder's interests?

If you agree with the former, your view coheres with that of **will theory**. Will theorists, like Immanuel Kant (Famous Philosopher File p.111) hold that the purpose of rights is to grant the right holder control over the duties that others owe him or her and, through so doing, make the right holder a 'small scale sovereign.'

But perhaps you agree with the latter view. If so, your opinion reflects that of **interest theorists**, like Jeremy Bentham (Famous Philosopher File p.440). Interest theorists claim that the reason rights exist is to make us better off by securing our wellbeing.

Of course, each view has its merits. Will theory acknowledges the powerful link between ourselves and others that lies at the very heart of rights and recognises that rights confer a certain power on the right holder by imposing duties on others. On the other hand, interest theory taps into the deeply intuitive idea that rights are really about making us better off.

Yet, while both theories have their merits, they also have their shortcomings. By positing that rights are things controlled by the right holder, will theory implies that rights can be waived or annulled if the right holder should so choose. However, this is clearly not the case. For example, the right not to be enslaved cannot be waived by the right holder. Furthermore, by claiming that rights confer sovereignty on the right holder, will theory fails to recognise the rights of those who are unable to exert sovereignty, such as animals, the severely disabled and babies.

Because interest theory views rights as instruments through which the individual's well being is secured, it manages to avoid the major pitfalls of will theory described above. However, and despite its intuitive appeal, interest theory doesn't quite fit with how we commonly understand rights. Most people would agree that simply having interests doesn't *automatically* entail having a right and, contrariwise, having rights doesn't *automatically* entail having an interest. For example, I may have an interest in my child attending an elite private school in a wealthy area but this doesn't mean my child has the *right* to attend that school. Likewise, the fact that you may or may not have an interest in receiving a basic education has very little to do with the government's duty to supply it. Additionally, interest theory fails to recognise that there are occasions when the interests of the individual are less important than other interests: it is certainly not in my interests to risk my life being shot at in a war zone, however my interests may be less important than the national interest which requires compulsory military service.

THINK

Will theory and interest theory both have merits and shortcomings. But which do you think is the most persuasive account of the function of rights?

Rights and Responsibilities

At the beginning of this Theme we described rights as freedoms or entitlements. This necessarily implies that rights impose particular responsibilities or **duties** on others. For example, your right to a basic education implies that the government has a duty to supply it and your right to life implies that others have a duty to refrain from harming you. Thus the duties imposed by rights are duties to do, and to refrain from doing, certain things.

The link between rights and duties is called the **correlativity of rights and duties**. Many philosophers believe that there cannot be a right without a corresponding duty. Many philosophers also believe that a right requires more than a corresponding duty for its existence; it also requires the duty to be accepted by the subject of the duty. If the duty goes unrecognised by the subject of the duty, the corresponding right cannot exist.

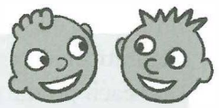
DO

Do you have a school charter or a set of school values? If so, acquire a copy of it.

Divide the key points into rights and duties. For each right, try to work out the corresponding duty. For each duty, try to work out the corresponding right.

When you have completed this task, discuss the following questions:

1. Do all rights have corresponding duties and vice-versa?
2. Are rights and duties equally distributed among students and the school?
3. Reflecting on the correlation between rights and duties in your school charter / school values, what, in your opinion, is the primary purpose of this document?
4. Reflecting on your answers to questions 1-3, would you describe your school charter / values as fair?



DISCUSS

1. What are the consequences of failing to recognise a duty?
2. In light of these consequences, should we always recognise our duty to fulfil certain rights?
3. Under what circumstances can failing to fulfil our duties be justified?

Just as rights imply certain duties, they also imply certain constraints. For example, your right to life means I that cannot kill you. You right to freedom from enslavement means that I cannot force you into slavery. Your right involves a constraint on my freedom.

This seems relatively uncontroversial. Some philosophers, however, have argued that not all rights operate in this way. In certain circumstances, the obligation to fulfil certain rights or to refrain from acting against certain rights can be overridden by stronger moral claims. For example, the constraint on my freedom implied by your right of freedom of expression (that I cannot prevent you from expressing your opinion) may be overridden by the fact that in expressing your opinion your have expressed sentiments intended to incite violence against a particular person or group.

Of course, not all philosophers agree with this. Nor do all philosophers agree that only some rights operate in this way. For further discussion of the circumstances in which rights can be overridden and obligations violated see pp.462-464 ('A Conflict of Rights').

THINK

Consider some examples of rights. What constraints on others do those rights involve? Are those constraints absolute or are there certain circumstances in which they can be violated?

Human Rights

Generally, when we hear the term 'rights' what usually springs to mind are what are called **human rights**. Human rights are internationally recognised moral guarantees aimed at protecting people from various political, social and legal abuses and securing the prerequisites for leading a minimally good life. Like all rights, human rights encompass duties as well as rights: the duty holders are primarily governments, who are responsible for complying with, and enforcing the rights, and the right holders are all human beings by right of their humanity.

Although some commentators have suggested that human rights can be traced to the moral universalism expressed in the writings of Aristotle (Famous Philosopher File pp.98-99) and the Stoics (a school of philosophy which started in Athens around 300BCE), most agree that that the concept begins with the idea of natural right proposed by John Locke (Famous Philosopher File p.104) and his predecessor, the British philosopher Thomas Hobbes (Famous Philosopher File p.483). Locke's view that all human beings possess certain inalienable rights (see p.483), not only influenced our contemporary conceptualisation of human rights as universal, it also served as the theoretical inspiration for both the American and French Revolutions and the rights documents that each produced. These documents, respectively The American Declaration of Independence (1776) and The Declaration of the Rights of Man and the Citizen (1789), enumerated various rights that the people could expect their governments to uphold. Some of these rights, such as freedom of religion and freedom of the press, are still recognised today.

Another historical source of inspiration for our contemporary conceptualisation of human rights is the moral philosophy of the eighteenth century philosopher Immanuel Kant (Famous Philosopher File p.111) and in particular, his views regarding the moral autonomy of rational human beings. You can read more about Kant's views in Chapter 5, Theme 3 (pp.419-421).

Yet, while these writings were certainly important, perhaps the most significant influences on the development of contemporary human rights were the atrocious abuses of human life and dignity that occurred in the early to mid-twentieth century, and in particular, the Holocaust. It was in the wake of this event that the United Nations General Assembly adopted what is considered the main source of contemporary human rights, The Universal Declaration of Human Rights (1948). This document consists of a preamble that recognises 'the inherent dignity...and inalienable rights of all members of the human family' and reminds its signatories that 'human rights should be protected by the rule of law'[44], and over two-dozen specific human rights. These include rights to life, freedom, political participation and to the protection of the rule of law (what have been described as **first generation** human rights), as well as socio-economic and cultural rights (known as **second generation** human rights). This document was supplemented in 1953 by the European Convention for the Protection of Human Rights and Fundamental Freedoms and in 1966 by the International Covenant on Economic, Social and Cultural Rights, and has been reinforced by various other declarations and treaties at national and international levels.

DO

Using the internet and the information above, create a timeline of the historical development of human rights. Display this timeline in your classroom.

READ

[see Useful Resources]

The Universal Declaration of Human Rights (1948) largely defines our contemporary understanding of human rights.

In pairs or small groups, read through this document. Using a highlighter and annotations, as well as the information contained in the above section on human rights, group the individual articles according to the types of rights they represent.

When you have completed this task, discuss the following questions:

1. Do you agree that all of these rights are equally important? Why or why not?
2. Should all governments be expected to protect and enforce these rights? Why or why not?
3. Could all governments realistically protect and enforce all of these rights?
4. If a government did not protect and enforce all of these rights, would it necessarily be a bad government?
5. In what circumstances, if at all, could these rights be justifiably withdrawn? What might be the implications of withdrawing rights?
6. Reflecting on your answers for questions 1-5, how important do you think it is that governments subscribe to and uphold the Universal Declaration of Human Rights?

44 www.un.org/en/documents/udhr/ (accessed September 1st, 2013)

JUSTIFYING HUMAN RIGHTS

Generally, philosophers agree that human rights are a combination of claim rights and liberty rights, positive rights and negative rights. They also agree that human rights evolve out of moral beliefs and their goal is to create the conditions for a minimally good life. Additionally, philosophers typically acknowledge that human rights possess particular moral force and that they trump other social and political considerations.

However, there is much disagreement among philosophers, particularly with regard to whether or not human rights can be understood as natural, universal and objective, what their purposes are and exactly which norms should be recognised as human rights.

The least controversial definition of human rights is the one that we used at the beginning of this section: human rights are moral guarantees expressed in national and international law aimed at protecting and securing the wellbeing of individuals. However, some philosophers have argued that if this is the only way that human rights exist, their availability is necessarily contingent on national and international political developments. As this contradicts our moral intuitions regarding the nature of human rights – we tend to think of them as things possessed by all people regardless of their political situation and geographical location – it is argued that human rights must have foundations that transcend law.

This immediately invites speculation as to what these foundations are. Some thinkers have suggested that the answer to this question is God. Just as God defines the moral laws that we should live by, so too does God define the rights that all human beings can expect to enjoy.

Putting aside the obvious issues of establishing God's existence and ascertaining God's intentions regarding rights, there still remain a number of significant problems with this theory. To begin with, if rights emanated from God they would necessarily be applicable not only to all people, everywhere, but also at any time. This means they would have to be relatively few in number, general and abstract. While some rights certainly do fit some of these criteria (for example, the right to life), most rights are specific and many presuppose contemporary institutions (for example, the right to a fair trial). To claim that rights emanate from God would be to deny the significance of some of our most important rights.

Furthermore, even if we accept that there are certain God-given human rights, it is uncertain how their status as God-given would render them practically secure. For many people throughout the world, God is either a redundant concept or not something understood in the same way as in the monotheistic traditions. It is unlikely that such people could be persuaded to adhere to rights if they don't believe in their metaphysical foundations.

Recognising the limitations of the religious theory, some thinkers have instead suggested either that rights exist as part of actual human moralities – in other words, as shared norms that occur within most human moralities – or that their existence can be demonstrated through moral reasoning – in other words, that they can be demonstrated as either true or false by the normative facts that support them (see 'Moral Realism,' p.362).

At first glance, these approaches may seem more persuasive: they don't require a belief in God and most of us can readily think of specific moral norms or values that appear to transcend cultures, such as the right to life. However, most people, if pushed to identify shared norms and values beyond the right to life, start to struggle, thus throwing into question whether these shared norms and values really do exist. Furthermore, as human rights gain increasing acceptance across the world, it has become clear that unanimity regarding human rights simply doesn't exist. In fact, it can be forcefully argued that the whole purpose of human rights documents is not to enshrine pre-existing norms, but to change them for the better.

Finally, the claim that the objective status of human rights can be demonstrated by appeal to normative facts seems to suffer from the same problems as general moral realist arguments (see pp.362-3). While it can certainly be demonstrated that acts such as torture compromise an individual's wellbeing, it is much harder to show why this entails that humans should not be tortured.

A more general criticism of the view that human rights are natural, universal and objective comes from moral relativists (see Chapter 5, Theme 1 pp.356-7), who claim that human rights are products of culture. This not only means that the principle of human rights that transcend culture is flawed, but that human rights *per se* are flawed because they are biased towards the particular cultures that produce them and fail to recognise important cultural differences.

The most obvious retort to this argument is that pointing to differences between cultures doesn't *in itself* provide strong justification for relativism or for the claim that the integrity of cultures must necessarily be respected. Surely, such an attitude would necessarily result in condoning regimes that were repressive or violent towards their own people. However, the claim that there is some level of cultural homogeneity embedded within human rights, is more difficult to deny – after all, the world's primary source for the contemporary understanding of human rights, the Universal Declaration of Human Rights, is a product of Western culture. Partly in response to this, a **third generation** of rights, including rights regarding self-determination and the rights of indigenous minorities, has appeared in various documents and treaties.

WRITE

Construct a table that lists arguments in favour, and arguments against, the view that human rights are natural, universal and objective. Where possible, use examples to support your points.

In addition to the information supplied in this section, use the internet and discussions with your classmates to enrich your arguments.

Just as philosophers have debated the status of human rights, controversy also exists regarding their purpose and justification. Do human rights exist to protect and promote our basic interests (interest theory) or are they an expression of our status as autonomous entities (will theory)?

You will already be aware of some of the strengths and weaknesses of each of these approaches from our earlier discussion on the function of rights (p. 440) No doubt you will recall that one of the strengths of interest theory is that it corresponds to our intuitions that rights are things created to secure our wellbeing. It also appeals to a notion of interests as shared norms – all humans, it would seem, share basic, fundamental interests – and through so doing provides a powerful rationale for the idea of inalienable rights.

However, interest theory has been accused of ignoring the diversity and reality of the human experience and failing to provide a coherent basis for respecting the rights of others. By positing the view that there are certain, basic interests that all humans share, interest theory implicitly appeals to a notion of human nature. Appeals to human nature have always proven highly controversial and are complicated by social and cultural diversity. This in turn makes it difficult to pinpoint exactly what these interests are. Even if we do manage to pinpoint some shared interests – for example, it could plausibly be argued that all human beings share a basic interest in their own security – the question still remains of how best to translate this interest into a right, given the different requisites for feeling secure in different cultures. Additionally, although the notion that rights are grounded in interests is intuitively appealing, such a view, because it is focused on the individual, provides no rationale for why I should respect the rights of anyone else.

Like the interest theory approach to human rights, will theory also has its strengths and weaknesses. As mentioned in the previous discussion of these theories (p.440), will theory taps into the powerful link between ourselves and others. It also recognises humans as autonomous creatures who are fundamentally free – a view shared by supporters of natural rights. However, it fails to account for our intuitive sense that those who are incapable of acting in a rationally autonomous fashion – such as babies, those with dementia, and those who are comatose or suffer from severe mental illnesses such as schizophrenia – should also be part of the rights community. Indeed, many of our rights specifically address those in such situations.

WRITE

Reread the Universal Declaration of Human Rights (see *Useful Resources*).
In light of your reading, which do you think provides a more plausible account of the purpose of human rights, will theory or interest theory?

Write a half-page response to this question using the articles from the Declaration to support your claims.

Philosophers have also disagreed with regard to what norms should be considered human rights. By expanding the list too widely, philosophers argue we risk devaluing human rights. By the same token, too narrow an approach could mean that significant rights are overlooked.

One area of human rights that has proven particularly contentious with regard to this problem is what are termed **social rights.** Along with economic and cultural rights, these rights were put into the Universal Declaration of Human Rights in 1966 in the form of a separate treaty (the International Covenant on Economic, Social and Cultural Rights). Those who deny their status as human rights claim that they don't serve fundamental interests, that they place too much strain on the tax system and are too burdensome for governments, and that they're simply unachievable for less developed nations.

The first of these criticisms taps into wider claims that what should rightly be described as human rights are those norms that specifically address significant goods, protections and freedoms. It is easy to see why such rights might be considered to fail this criterion: the right to housing is hardly on par with a right like freedom from torture. However, it could also be argued that some social rights are extremely significant. Without housing people can become extremely ill, are exposed to threats to their personal security and could even die. Also, some social rights, such as the right to education and the right to work, play a significant role in facilitating what are considered the more 'important' civil and political rights.

The second criticism – that social rights are too costly and too burdensome – is generally proposed by **libertarians** on the grounds that such rights demand excessive taxation. It is certainly true that rights like the right to education, the right to an adequate standard of living and the right of mothers to receive paid maternity leave do cost governments significantly, and these costs are passed on to the taxpayer. However, many civil and political rights, such as free elections and rights to due process and a fair trial, are also costly. Thus denying these rights the status of human rights simply on economic grounds seems flawed.

The third criticism, although bearing some resemblance to the second, is perhaps more problematic. For less developed nations that have limited funds and therefore must prioritise, rights such as access to paid maternity leave may be difficult, if not impossible, to achieve. Although some philosophers, such as John Rawls (Famous Philosopher File p.469), have claimed that it is the duty of liberal democratic nations to support less fortunate countries to realise these rights, reasons as to *why* this is the case have been less forthcoming. Others have argued that rather than rights, the rights contained in the International Covenant on Economic, Social and Cultural Rights should be understood as *desirable goals* to be progressively realised. Of course, such an argument could also be used by detractors of these rights as human rights: if they are goals then by definition they cannot be understood as rights.

DO

[see Useful Resources]

Independently, or as a whole class, read through the International Covenant on Economic, Social and Cultural Rights.

Divide the class into an even number of small groups (for example, four groups of three students). Half of these groups will work on mounting a case in favour of the legitimacy of the rights contained in the Covenant as human rights and the other half will focus on mounting a case against the legitimacy of these rights. In preparing their cases students should focus closely on the articles contained in the Covenant.

When students have completed this task, each group in favour of the legitimacy of the rights will join with a group against their legitimacy. Each side will present their case and have the opportunity to critically examine and evaluate the case of the opposition. Students should use the skills of evaluation developed in Chapter Two (from p.40 onwards) during this activity.

WRITE

After completing the above task, write a brief reflection (approximately 500 words) on the following question:

- Are social rights human rights?

TEXT STUDY: James Griffin, *On Human Rights* (2008)

[see Useful Resources]

Divide the class in half. One half of the class will read and summarise Section 2.3 and the other half of the class will read and summarise Section 2.4. To help you to construct your summary you can use the questions listed under the relevant sections below.

Section 2.3 A Proposal of a Substantive Account

1. How does Griffin define human rights?
2. On what view of human beings is this understanding of human rights based?
3. What are Griffin's three components of personhood and how is each defined?

Section 2.5 A Second Ground: Practicalities

1. Why does Griffin believe that personhood, taken alone, is an insufficient ground for human rights? (*You may like to summarise his example to illustrate your response.*)
2. What is meant by the term 'practicalities'?
3. What is the role of practicalities in Griffin's conception of human rights?

When you have completed the above task, divide into pairs. One member of the pair should have read Section 2.3, the other 2.5. Share your summaries.

Still working in your pair, construct a visual representation (for example, a flow chart) of Griffin's arguments. Your visual representation should include:

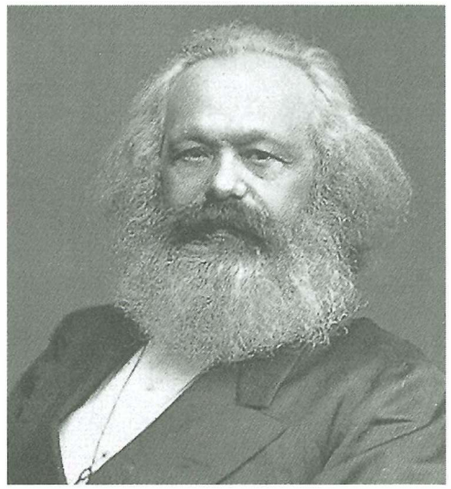
- Griffin's definition of a human right
- Griffin's two grounds for human rights and his rationale for these grounds
- Examples of rights that would conform to his understanding of human rights.

Share your visual representation with the class and then as a whole class discuss the following question:

- Does Griffin provide a convincing account of human rights?

FAMOUS PHILOSOPHER FILE

Karl Marx (1818–1883)



Karl Marx was born into a wealthy middle-class family in Trier, a town in southern Germany, in 1818. He was descended from a religious family – his paternal line had supplied Trier's rabbis for almost 100 years – however his father, Herschel Marx, converted from Judaism to Lutheranism prior to Marx's birth. Not much is known about Marx's childhood. He was privately educated until the age of twelve, when he entered Trier High School. At seventeen he commenced studies in law at the University of Bonn where, among other things, he served as co-president of the Trier Tavern Club Drinking Society and took part in a duel. After his grades began to deteriorate, his father transferred him to the University of Berlin. Marx was awarded his doctorate in 1841. In 1843 Marx moved to Paris after marrying Jenny von Westphalen, a baroness of the Prussian ruling class whom he had known since he was a child. It was in Paris that Marx commenced his private studies in economics. He was exiled from France in 1845 for publishing a radical newspaper and moved to Brussels, where he first met his long-time collaborator and friend, Friedrich Engels (1820-1895). Together they wrote what critics believe is Marx's best treatment of the concept of historical materialism, *The German Ideology* (1932). This was closely followed by the pair's most famous work, a political pamphlet known as *The Communist Manifesto* (1848). Later in 1848 Marx was forced to flee back to France after the Belgian Ministry of Justice accused him of arming Belgian workers who were planning revolutionary action. He remained in Paris for less than a year before his revolutionary activities saw him once again expelled. He and his family moved to London, where he remained for the rest of his life. Marx continued working as a radical journalist while refining his understanding of economics and engaging in revolutionary activity, including holding a position on the General Council for the International. In 1867 he published the first volume of his master work, *Das Kapital*. Although he worked on the manuscripts of the two other volumes for the rest of his life, they would not be published until after his death. After the death of his wife in 1881, Marx fell into ill-health. He died in London from bronchitis and pleurisy and was buried in Highgate Cemetery, London.

TEXT STUDY: Karl Marx, *On the Jewish Question* (1843)

[see Useful Resources]

In this essay Marx criticises the revolutionary documents of eighteenth century America and France on the grounds that the rights they articulate are based on a flawed conception of human beings as isolated individuals whose interests can be defined without reference to one another. He is particularly critical of the key rights of equality, liberty, security and property on the respective grounds that they: separate the individual from others; promote a culture of self-interest and invite individuals to see others as limitations on their own liberty; encourage the view that each isolated individual is self-sufficient; and reinforce individuals' egoism by perpetuating the notion that the purpose of society is to guarantee each individual's security (implying that we are always potentially in conflict with others).

Read the following passage:

Let us notice first of all that the so-called rights of man...are simply the rights of a member of civil society, that is, of egoistic man, of man separated from other men and from the community. The most radical constitution, that of 1793, says: 'These rights... (the natural and imprescriptible rights) are: equality, liberty, security, property.

Liberty is...the right to do everything which does not harm others. The limits within which each individual can act without harming others is determined by law, just as a boundary between two fields is marked by a stake...liberty as a right of man is not founded upon the relations between man and man, but rather on the separation of man from man...It is...the right of the circumscribed individual, withdrawn into himself.

The right of private property is...the right to enjoy one's fortune and to dispose of it as one will; without regard for other men and independently of society. It is the right of self-interest...It leads every man to see in other men, not the realization, but rather the limitation of his own liberty.

The term 'equality' has here no political significance. It is only the equal right to liberty as defined above; namely that every man is equally regarded as a self-sufficient monad.

Security is the supreme social concept of civil society...The whole society exists only in order to guarantee for each of its members the preservation of his person, his rights, and his property...Security is the assurance of its egoism.

None of the supposed rights of man...go beyond egoistic man...that is, an individual separated from the community, withdrawn into himself, wholly preoccupied with his private interest and acting in accordance with his private caprice...The only bond between men is natural necessity, need and private interest, the preservation of their property and their egoistic interests.[*]

* http://www.marxists.org/archive/marx/works/1844/jewish-question/ (accessed September 5th, 2013)

Using a highlighter, identify where Marx:

- Defines rights
- Provides his criticism of the right of liberty
- Provides his criticism of the right of equality
- Provides his criticism of the right of security
- Provides an overall criticism of the 'rights of man'

In pairs, construct a series of arguments in favour of, and against, Marx's criticisms of rights using examples (you may want to refer to the Universal Declaration of Human Rights to help you to do this).

Share these arguments with the class, then discuss the following question:

- How persuasive is Marx's argument against human rights (the 'rights of man')?

RELEVANT CONTEMPORARY DEBATE: HOW SHOULD AUSTRALIA RESPOND TO ASYLUM SEEKERS?

A DEBATE.

Perhaps one of the most controversial issues in Australian politics in recent years has been our country's response to asylum seekers.

Research current Australian policy regarding asylum seekers.

When you have completed this task, prepare for a debate on the issue of whether or not Australian policy breaches asylum seekers' human rights. The side for the affirmative should argue that Australia *is* breaching asylum seekers' human rights and the side for the negative should argue that Australia *is not* breaching asylum seekers' human rights. Although various human rights documents can and should be consulted in the preparation of your debate (as well as Australian policy), you should also draw on your more general knowledge of human rights, and in particular, the various questions that have been raised about the legitimacy of some human rights.

You might like to stage your debate for your wider school community.

Women's Rights

Historically, women have been denied the opportunity to access the same rights as men. In many non-Western countries, these inequalities are marked and continuing, including denial of rights to own property, travel freely, drive cars and to access employment. While we have come a long way in the last 100 years, there are still many areas of life in Australia and other Western societies where females experience unequal treatment compared with males.

DO

Try this quiz. Check your answers on the next page.

1. A man and a woman do exactly the same job in Australia in 2018. Is the woman paid less or more, on average?
   a. Less, but only about 0.8% less.
   b. Slightly more, on average.
   c. 18.2% less.
   d. 10% less.
2. The leading cause of death, disability and injury in women aged 15-44 is:
   a. cancer
   b. violence from a male partner
   c. heart disease
   d. road accidents
3. The first country in the world to allow women to run for parliament in 1903 was:
   a. Finland
   b. United States
   c. Germany
   d. Australia
4. In Australia, women were not permitted to enter the public bar of a hotel, and often required a male companion to be permitted even in the Ladies Lounge, until:
   a. 1963
   b. 1903
   c. 1888
   d. 1920

5. In developing countries, women die as a result of pregnancy complications (mostly easily preventable) and childbirth at the rate of:
   a. 10 women each year
   b. 1 woman each week
   c. 1 woman each day
   d. 1 woman each minute

ANSWERS ON NEXT PAGE

EQUAL RIGHTS FOR WOMEN IN THE WEST: MARY WOLLSTONECRAFT

Imagine you are a woman in London in 1788. If you are single, there is little protection for you of any kind under the law. If you marry, you cease to possess a legal identity of your own but are granted legal rights under the wing of your husband. However, you may not independently access legal representation, sign a contract, inherit or buy property, vote, or have rights over your children.

As law professor William Blackstone noted in his *Commentaries on the Laws of England* in 1758:

> *The husband and wife are one person in law; that is, the very being or legal existence of the woman is suspended during the marriage or at least is incorporated and consolidated into that of the husband: under whose wing, protection and cover, she performs every thing.*
>
> [Source: William Blackstone. Commentaries on the Laws of England. Vol, 1 (1765), page 442.]

This was the context into which Mary Wollstonecraft (Famous Philosopher File p.455) launched the bold declarations of her book, *A Vindication of the Rights of Woman* in 1792. She argued that as human beings, *both* men and women should enjoy rights to life, liberty and the pursuit of happiness – in other words, that to speak of 'human rights' should be to speak of women's rights.

One of Wollstonecraft's key arguments centres on her identification of a vicious circle by which men retain power. She argues that women's education and opportunities are restricted by men. Then men claim that women lack the necessary capacities to participate in public life, and use this to further justify restrictions on women's education and opportunities. According to Wollstonecraft, this is how men have perpetuated the false notion that women are naturally inferior and that only men should hold power.

So, according to Wollstonecraft, men do not dominate because they are naturally superior; rather, women have been restricted to subjugated roles and denied the rights to education and skill development that would enable greater participation in public life. She writes, "It cannot be demonstrated that woman is essentially inferior to man because she has always been subjugated." Wollstonecraft, well-versed in classical and enlightenment philosophy, argues that an ideal society should be governed by reason, virtue and respect for knowledge. She argues that, contrary to the view that had prevailed since Aristotle and medieval times, women are not naturally deficient in reason. For Wollstonecraft, such a view is fundamental to grotesque injustices visited daily upon women, and thereby to the diminishment of civilisation as a whole.

The view that women lack rational capacities, and their lack of access to education, also trap them, Wollstonecraft argued, into playing superficial roles, caring only about external appearances and being treated like "toys". She writes: "indoctrinated from childhood to believe that beauty is woman's scepter, spirit takes the form of their bodies, locked in the gilded cage, only seeks to adorn its prison." She argues that if women are allowed to become men's intellectual equals, men too will enjoy more fulfilling relationships. She sympathises that for an intelligent man, life must be lonely indeed with a wife who lacks education and has grown up considering it unseemly to demonstrate intellect.

Wollstonecraft's solution is an education system which would educate boys and girls together and equally. "Truth must be common to all," she writes.

THINK

Are Wollstonecraft's ideas still radical today? Why or why not?

TEXT STUDY: Mary Wollstonecraft, *A Vindication of the Rights of Women*

[see Useful Resources]

Read the Introduction.

1. What is the "one hasty conclusion" that Wollstonecraft identifies as the cause of women's "misery"?
2. Explain Wollstonecraft's analogy of the "barren blooming flower". What purpose does it serve in her argument?
3. What does Wollstonecraft declare about the style she will adopt for writing the *Vindication* and for what reasons?
4. What comparisons does Wollstonecraft make between the ways men and women are perceived and experience the world? Which of these does she believe are grounded in nature and which are contingent on experience?
5. What negative consequences does Wollstonecraft identify as having arisen from the divide between men and women?
6. What is humanity's greatest gift, according to Wollstonecraft? How does this this claim operate as the basis for Wollstonecraft's argument about equal rights?
7. Why will education for women improve society at large, according to Wollstonecraft?

Answers to Quiz on previous page: 1(c); 2(b); 3(d); 4(a); 5(d).

FAMOUS PHILOSOPHER FILE

MARY WOLLSTONECRAFT (1759–1797)

George G. Rockwood [Public domain], via Wikimedia Commons

Wollstonecraft was born in London, the second of seven children. Her father, abusive to his wife and offspring, squandered his inherited fortune on drinking and gambling. Wollstonecraft received the minimal instruction available to girls at the time, while her brother received a full education. She set about a program of self-education, reading all she could lay her hands on and finding mentors such as Mr and Mrs Clare, who offer her a second home, and with whose daughter, Fanny Blood, Wollstonecraft developed a deep friendship.

At age 19 Wollstonecraft needed to earn a living. As a middle class girl she had three choices: housekeeper, companion to a noblewoman or teacher. Having spent a few years in the former occupations, she started her own school in London in 1783 with Fanny Blood, and through this venture she developed friendships with several intellectual young men who shared her interest in Locke's philosophy and beliefs in education for all. At this stage, Wollstonecraft began to write poetry, novels, translations of major philosophical works, children's books, criticism, reviews, articles, and her own philosophical treatises including her work on human rights, *Vindication of the Rights of Man* and her landmark work of feminist philosophy, *Vindication of the Rights of Woman.*

In 1785, Fanny Blood moved to Lisbon where she married and gave birth to a child. Wollstonecraft was devastated by her dear friend's death shortly after childbirth. Not long afterwards, the school fell into financial difficulties and Wollstonecraft devoted herself further to her writing.

Drawn by the ideals of the French Revolution, which promised equal rights for women, Wollstonecraft moved to Paris in 1792. Robespierre's ascent to power ended hopes for a fairer society, and having fallen in love with American adventurer Gilbert Imlay, Wollstonecraft fled with him to Neuilly to escape the guillotine under which other feminist women had died in Paris.

Soon after the birth of their daughter, Imlay abandoned Wollstonecraft for an actress. Still desperately in love with Imlay and writing him daily pleas to return home, Wollstonecraft sank into depression. In 1796, she met William Godwin and began with him a relationship of true intellectual equals. A daughter was soon conceived, who would later be known to the world as Mary Shelley, author of the novel *Frankenstein* (and wife of poet Percy Shelley). Wollstonecraft tragically would never know this second child; she died of an infection ten days after giving birth.

A Vindication of the Rights of Women became a bestseller in Wollstonecraft's lifetime, but it would be more than a century until Western societies would implement her ideas.

DO

Research at least one other feminist philosopher and present at least one of her central arguments regarding women's rights to your class. For example:

- Simone de Beauvoir
- Martha Nussbaum
- Judith Butler
- Julia Kristeva
- Carol Gilligan
- Iris Marion Young

Animal Rights

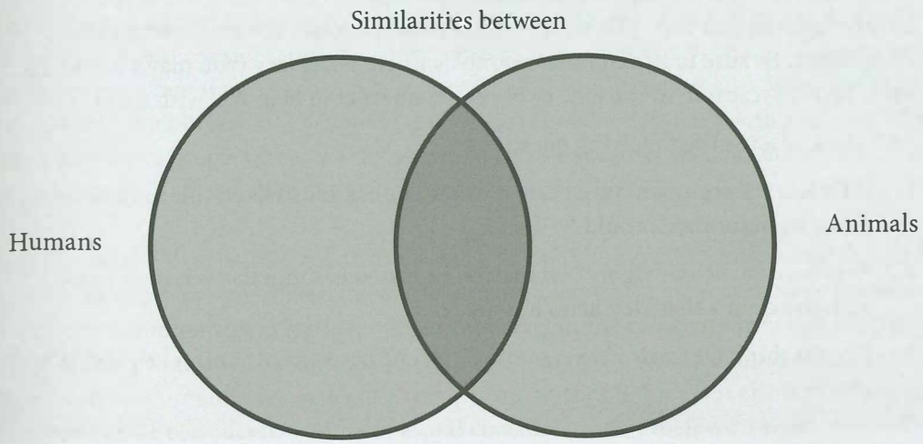
Up until the mid-twentieth century, questions associated with the moral status of animals, their rights and our duties towards them were largely peripheral to debates in philosophy. While some thinkers, such as Aristotle (Famous Philosopher File pp.98-99) and Kant (Famous Philosopher File p.111) believed that the lack of a rational capacity precluded animals from moral consideration, others believed that although animals could be accorded the properties of feeling and perception, they lack other properties deemed essential for participation within a moral community. Although there were some notable exceptions, such as the utilitarian thinker, Jeremy Bentham (Famous Philosopher File p.404), who believed that animals should be afforded moral consideration on the basis of their capacity for pleasure and pain, most thinkers upheld the view that because humans possess certain properties that animals lack, our moral status far outweighs that of animals and our duties and responsibilities to them, if they exist at all, are minimal.

In the latter half of the twentieth century, however, this view began to be challenged by members of the philosophical community. In his landmark work, *Animal Liberation* (1975), Peter Singer (Famous Philosopher File p.412), often cited as the progenitor of the modern animal rights movement, draws parallels between the treatment of animals and other forms of discrimination and concludes that such views are unsustainable because animals, like humans, have interests.

This of course raises the question of just *how* different animals really are from humans and whether or not these differences justify the denial of rights.

DO

In pairs, construct a diagram like the one below that depicts the similarities and differences between humans and animals:



Share your diagram with the class and then discuss the following questions:

1. Compared with the similarities, are the differences between humans and animals meaningful? In what way?
2. Compared with the differences, are the similarities between humans and animals meaningful? In what way?
3. Do the differences between humans and animals permit us to treat animals in different ways to how we might treat humans? What are these ways?
4. Do these differences mean we are more valuable than animals? Why or why not?
5. Do the similarities between animals and us suggest anything about how we should think about our relationship with animals?
6. What are some possible implications of these similarities and differences for our thinking about animals?

One thinker who believed that animals were *fundamentally* different to human beings was the French philosopher, Rene Descartes (Famous Philosopher File p.102). In his *Discourse on Method* (1637) Descartes describes animals as sophisticated organic machines lacking the essential human property of consciousness. Because animals lack consciousness they do not feel pleasure and pain as humans do; thus, they cannot be harmed.

READ

[see Useful Resources]

Read Part V of Descartes' *Discourse on Method.*

Reconstruct Descartes' arguments in standard form on A3 paper. When you have completed this task, join with a partner and annotate the arguments with evaluations. Be sure to use counter-examples where necessary (you may want to do some further research in the library or on the internet to help you with this.)

As a class, discuss the following questions:

1. If Descartes' arguments are correct, what implications would this have in terms of the rights animals could be denied?
2. Are there particular rights that may be extended to animals even if we agree with the claims that Descartes has made?
3. Do you think Descartes has mounted a strong case against animal rights? Why or why not?

Although few people would agree with Descartes' views today – science has conclusively debunked the view that animals are incapable of feeling pleasure and pain – many people still believe that animals can be excluded from moral consideration on the grounds that they lack a specific aspect of consciousness, which is *self-awareness.* Without self-awareness, so the argument goes, animals cannot understand themselves as individual entities and so cannot have interests.

However, such a view is almost certainly flawed. Scientists have demonstrated that animals such as elephants and dolphins possess self-awareness and even those creatures that don't possess self-awareness still have an interest in their own survival, however purely biological this may be. Furthermore, many humans cannot be said to be self-aware, yet most of us would agree that, for example, people in comas, the severely handicapped or perhaps very small babies have interests and should be granted moral consideration and thus rights.

Another difference between humans and animals that has been used to exclude animals from the moral community is language. According to thinkers such as Wittgenstein (Famous Philosopher File p.517), language is necessary for consciousness and, since animals do not possess language, they do not possess consciousness. If you completed the task above, you will know that Descartes also used absence of language as evidence that animals lack consciousness. In the *Discourse on Method* he describes language as a capacity exclusive to humans and states that the absence of language 'shows not merely that the beasts have less reason than men, but that they have no reason at all.'

Again, modern science has demonstrated that such views are flawed. For decades now, chimpanzees have been taught sign language at various research institutions around the world. Researchers have observed that the animals not only learn to communicate with their keepers using this medium, but with each other. Researchers in Washington even observed one of their famous chimpanzee students, Washoe, actively teaching signing to an adopted offspring.

Yet even if animals are not capable of language use, this hardly seems adequate proof that they lack consciousness. It is generally accepted that babies possess consciousness despite the fact they lack language, and most of us would agree that adult human beings who for one reason or another are unable to communicate, are not without consciousness.

A third reason given by philosophers for denying animals rights is that, unlike humans, they are not *rational.* Rationality, according to Kant (Famous Philosopher File p.111), is a necessary prerequisite for moral consideration as it is rationality that allows us to be moral agents and it is the fact that we are moral agents that entitles us to moral consideration and, in turn, rights. This is not to say that Kant believed we should treat animals however we wish – animals are, after all, often the property of people whom we do have duties to – but rather that our duties towards them extend only insofar as they relate to our duties towards one another.

While it is probably true that most animals are amoral, it is certainly debatable that animals lack reason. Animals have exhibited the capacity to problem-solve, plan and make decisions; the aforementioned chimpanzee, Washoe, even exhibited genuine creativity through language. Yet even if we were to conclude that animals do lack rationality, we would still face the conundrum of the previous arguments: using Kant's reasoning, neither babies nor the severely mentally handicapped can be considered worthy of moral consideration in their own right.

It seems then that on whatever grounds we attempt to exclude animals from the moral community and disqualify them from having rights, we end up excluding a particular group of people whom we clearly believe should be extended moral consideration, or we find a particular species which shares our supposedly 'unique' trait, whatever it may be. This invites the question, is the denial of animal rights simply an act of **speciesism**?

DO

In pairs or small groups, try to write your own argument against animal rights.

Share these arguments with the class and then discuss the following questions:

1. Which of these arguments would you describe as:
   a. Credible?
   b. Persuasive?
   c. Convincing?
   d. Compelling?
2. Why have you rated the arguments in this way?
3. Is it difficult to mount a strong case against animal rights? Why or why not?

In *Animal Liberation,* Peter Singer (Famous Philosopher File p.412) claims that as there is no *important* difference between animals and humans, denying animals rights is much the same as denying rights to women or people of a particular ethnicity. It is an act of prejudice. But is such prejudice necessarily wrong? After all, we often favour those whom we are bonded to and this is rarely seen as morally objectionable: the fact that I would save my daughter's life before I'd save

yours may not please you but you will probably agree (unless, of course, your life is actually under threat!) that my actions are not reprehensible. So is there anything wrong with favouring members of our own species over members of others?

THINK

Consider the differences you identified between humans and animals in the previous activity (p.457). Do these differences legitimate excluding animals from the moral community?

TEXT STUDY: Peter Singer, *Animal Liberation* (1971)

[see Useful Resources]

Peter Singer's (Famous Philosopher File p.412) *Animal Liberation* is perhaps the most significant work by a philosopher on the issue of animal welfare. In the first chapter ('All Animals Are Equal') Singer outlines his case for animal rights.

Independently, or as a class, read 'All Animals Are Equal.'

- Does Singer provide a convincing argument for including animals in the moral community?
- What are some examples of the kinds of rights Singer's argument would suggest animals should have?
- What implications would this have for human beings?

Environmental Rights

Even if you don't agree that animals should be endowed with rights, you can probably understand why others hold an opposite view. After all, animals at least seem much like us. They require sustenance in the form of food and drink, raise young, feel sensation and often seek out companionship whether with humans or other animals. But what about the environment? Can trees, mountains, rivers, forests and flowers have rights and if so, on what grounds?

Environmental ethics is a relatively new sub-discipline in philosophy, emerging during the early 1970s as people became increasingly aware of the possibility of wide-scale anthropogenic (human-caused) environmental devastation. Although a variety of causes have been posited for the often destructive relationship humans have towards the environment, an often-cited view is that put forward by the medieval history scholar Lynn White Jr. (1907-1987) in his seminal paper 'The Historical Roots of Our Ecological Crisis' (1967). According to White, our attitudes towards the environment are embedded within the Judeo-Christian tradition that has radically shaped Western culture. This tradition maintains that humans are superior to nature and that nature has been created exclusively for our use. For example, the book of Genesis tells us 'God said, Let us make man in our image, after our likeness: and let them have dominion over the fish of the sea, and over the fowl of the air, and over the cattle, and over all the earth, and over every creeping thing that creepeth upon the earth… And God blessed them, and God said unto them, Be fruitful, and multiply, and replenish the earth, and subdue it.'[45] According to White, this kind of thinking has encouraged humans, particularly in the West, to over-exploit nature.

Thus the challenge for environmental ethicists has been to demonstrate why this anthropocentric (human-centred), instrumental view of nature is flawed. If it can be shown that nature has intrinsic value, a value beyond its capacity to aid human wellbeing, there are grounds for concluding that we have a moral duty to preserve and protect it.

One thinker who has attempted to do just that is the New Zealand-born, Australian philosopher Richard Routley[46] (1935-1996). To demonstrate his argument that the anthropocentricism that dominates our interactions towards nature is a kind of 'human chauvinism' no different from the chauvinism that underlies class biases, he proposes a thought experiment known as the 'last man:'[47] Imagine that a world catastrophe has occurred, resulting in the deaths of all of humanity except for one person. This 'last man' decides that before he dies he will ensure the destruction of all remaining living things and acts to do so. From the perspective of what Routley terms 'human chauvinism' the last man has done nothing morally wrong because his actions do not impinge on the interests or wellbeing of other humans. However, Routley suggests our moral intuitions would incline to the view that such actions *are* morally wrong, in turn suggesting that these non-human aspects of the world have an intrinsic value beyond their usefulness to humans.

DISCUSS

1. Are you convinced by Routley's thought experiment? Why or why not?
2. How may intrinsic worth be understood as a grounds for rights?
3. If we accept that intrinsic value is an adequate ground for rights, and that nature has intrinsic value, what are some of the rights that could be extended to the natural world?
4. What duties are implied by these rights?
5. Are these duties problematic? In what way?

Not everyone agrees that it is necessary to demonstrate the intrinsic value of nature to demonstrate that human beings have duties to protect and preserve it. Some thinkers have argued that moral duties towards the environment can be derived from the moral duties we have towards each other. For example, the protection of old-growth forests can be seen as an extension of the moral duty to ensure human wellbeing. Although this implies that nature is important only insofar as it is useful to us, such thinkers argue that it bypasses the burden of attempting to demonstrate nature's intrinsic value and it provides a more practical basis for arguing for social policies to protect the environment.

45 Genesis 1:26-28
46 Later known as Richard Sylvan
47 Routley, R. 1973, 'Is There a Need For a New, an Environmental, Ethic?' in *Proceedings of the XVth World Congress of Philosophy 1*, pp.205-210

RELEVANT CONTEMPORARY DEBATE: CLIMATE CHANGE

Pretend that you are the environmental minister for the current government. Your job is to persuade the government to take action on climate change.

To this end, prepare a speech (approximately 5 minutes) that uses **one** of the above arguments for environmental rights as its basis. You may like to do some further research into both climate change and environmental ethics. When you have prepared your speech, deliver it to the class.

DISCUSS

- Reflecting on the above activity, which of the arguments offers the most persuasive case for environmental rights?
- Are there reasons why we should not extend rights to the environment? What are these?
- Is the case for environmental rights more persuasive than the case against it? Why or why not?

A Conflict of Rights

DO

Together with a partner, consider the following case scenarios:

- An intruder breaks into your home in the middle of the night when you are home alone. Although you have seen the intruder's shadow and are aware that he is a man much larger than yourself, you do not know if he is armed. You, however, have a handgun in your underwear drawer. Should your right to security prevail over the man's right to life?
- A mother discovers that her unborn child is threatening her life. If she continues with her pregnancy she will die. Whose right to life should prevail, the mother's or the unborn child's?
- In a remote country in the Arctic Circle the only source of income for the impoverished people is fur trapping. Should these people's right to an adequate standard of living (which is provided by the fur trapping) prevail over the animals' – who supply the furs – rights to life?
- To preserve the lives of native animals it is necessary to cull the feral cat population. Whose rights to life should prevail, the native wildlife's or the feral cats'?

- Several good seasons have led to overpopulation among kangaroos, which threatens their native habitat. Should the rights of the habitat prevail over the kangaroos' rights to life?
- A poor nation desperately requires more land to increase its capacity for agriculture, which is its only source of income. However, to increase the nation's land it is necessary to clear important rainforests. Should the rights of the rainforests prevail over the rights of the people to earn a living?

As you read through each case scenario, discuss how you think the conflict of rights expressed at its conclusion should be resolved and why. When you have completed this task, share your responses with the class and, as a whole class, discuss the following questions:

1. What were some of the issues surrounding rights that arose during this activity?
2. Were you able to develop criteria to help you with your judgments? If so, what were these criteria and did they work in every situation? If not, why not?
3. In the attempt to resolve the conflict expressed at the conclusion of each scenario, did you discover any prejudices or presuppositions in your thinking? How might you attempt to justify these prejudices or presuppositions? Are your justifications logical?
4. Reflecting on this activity, do you think there is a method for resolving a conflict of rights? Why or why not?

No doubt the problem of conflicting rights has come up at some point during your study of this Theme. Perhaps some of the scenarios in the above activity echo the content of your classroom discussions, particularly those concerned with animal or environmental rights. And as you may have realised during these discussions, finding a way to resolve a conflict between rights isn't easy.

One of the problems with such a conflict is that it requires us to work out whether there really is a conflict and, if so, which right claim should take precedence. To help us to understand and resolve a conflict between rights, philosophers have devised two theories: **specificationism** and the **prima facie** view.

According to specificationism, although every right is absolute, every right includes qualifications. These qualifications specify when the right does and does not apply. For example, in the case of freedom of expression, we might say that such a right is absolute *unless* in the exercise of that right the individual causes harm, or the possibility for harm, to others. Or, in the case of freedom of association, we might say that such a right is absolute *unless* that association threatens the government's duty to maintain public order. On this view, a conflict between rights is nearly always apparent rather than actual: it results from a lack of awareness about the qualifications that underpin the conflicting rights rather than an irresolvable, actual conflict between those rights.

THINK

Can you detect any problems with specificationism? What are these problems?

On the other hand, the prima facie view holds that we are best able to understand and resolve a conflict between rights if we first distinguish between what are termed **prima facie rights**, **actual rights** and **absolute rights**. A prima facie right is a right that can be overridden in certain circumstances. For example, many people would hold that an individual's right to freedom of expression may be overridden if, in exercising that right, the individual vilifies a person or group in a discriminatory manner or attempts to incite violence or prejudicial action against a person or group. Prima facie rights imply prima facie obligations – in other words, obligations that can be overridden by stronger moral claims. Actual rights are prima facie rights that, in a particular situation, are not outweighed by other considerations. For example, while freedom of expression may be considered a prima facie right, there are many circumstances where there are no moral considerations strong enough to outweigh the right. In such cases, the right stands. Absolute rights cannot be outweighed by other considerations. They entail absolute obligations. There are no circumstances in which the obligation can be overridden.

When there is a conflict between rights, the prima facie view argues that one must first decide if the conflict is between an absolute and prima facie right. If so, the conflict is easily resolvable: an absolute right *always* outweighs a prima facie right. If, however, the conflict is between prima facie rights then one must weigh the rights against each other by examining the arguments for and against either of the rights being actual rights.

DO

Divide the class in half. Working in pairs, one half of the class will apply specificationism to resolve the examples of conflicting rights in the activity on pages 462-3. The other half of the class, also working in pairs, will apply the prima facie view to resolve the same examples of conflicting rights.

As students work through the examples, they should note any merits or shortcomings they observe in regards to the theory they are using.

When students have completed this task, as a whole class discuss the following questions:

1. What are the merits and shortcomings of each of the theories?
2. Do the theories contain any inbuilt prejudices? Are some right holders *always* going to be better or worse off when applying these theories to rights conflicts? How could this problem be addressed?
3. Of the two views, which do you think is more effective for resolving a conflict between rights? Why?

THINK

- What are some examples of prima facie rights and absolute rights?
- Many philosophers have argued against the existence of absolute rights, claiming that there are only prima facie (and actual) rights. Do you agree with them? Why?

Justice

What is Justice?

Thus far in this Theme we have overwhelmingly focused on rights: what they are, what they entail and who can have them. However, no discussion of rights would be complete without examining the issue of justice. After all, the question of what duties are owed to us, particularly by governments, is really a question about **justice** and what we can, and cannot, rightfully demand.

Although the term justice is notoriously difficult to define, at its most basic it may be understood as giving people what is due to them and denying them what is not due to them. Although this ties into the larger issue of morality insofar as justice defines what is morally required of us, or the institutions that represent us, to do for one another, it is not synonymous with justice. Justice does not necessarily define what it is morally *right* for us to receive, only what it is our *due* to receive. For example, while it may be morally right for a homeless person to receive a few dollars to help her pay for shelter for the evening, it is not necessarily her due to receive this charity. We might speak of my decision to provide those few dollars as morally right. However, we would be unlikely to describe it as morally just.

Most philosophers would probably agree with our definition of justice as a matter of rightful dues. Where they would disagree is in terms of the criteria by which these rightful dues are decided. Although philosophers have arrived at a number of different responses to this problem, we will examine three: the commonsense view of justice as just dessert, Robert Nozick's (Famous Philosopher File p.493) view of **justice as entitlement** and his Harvard colleague, John Rawls', view of **justice as fairness.**

THE COMMONSENSE VIEW OF JUSTICE

The commonsense view is one that you are probably very familiar with, as it tends to characterise most people's thinking when it comes to justice. According to one version of this view, justice is ensuring that those who have the ability and are willing to do better than others, receive more. To illustrate, we might say that individuals who are willing to commit to the amount of study required to receive high ATARS and are then willing to complete six years of medical school, countless hours of professional development and endure the high pressure environment of surgical theatre deserve higher wages than someone who works in an unskilled trade. Likewise, many of us would probably agree that the worker who completes her tasks carefully and to a high standard, and puts in extra hours, deserves a promotion more than the worker who puts in the bare minimum and whose work is of poor quality. We might even agree that this remains the case even if this achievement is due to factors such as the quality of the education the person received, their socio-economic background and their psychological make-up; few people would agree that